



Document Management System



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Ministry of Health
The Royal Hospital
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Title: Bioethics Dispute Policy

1. Purpose:

In order to facilitate the decision-making in case of dispute due to ethical dilemmas this policy and related-form were created. The dispute framework is a reflective process intended to stimulate discussion among decision makers that will enable them to identify explicit reasons for or against a particular proposed course of action, and to do that in the context of our mission, values and ethical principles as per outlined by the Royal Hospital policy of ethical framework.

2. Policy Statement:

- The Royal Hospital policy of ethical framework shall be followed and applied.

3. The Procedure:

The dispute framework is based on a three-step approach as follows:

3.1 Observe

3.1.1 Identify the Problem

- Name the problem clearly. Where is the conflict?

3.1.2 Acknowledge Feelings

- What are the “gut” reactions, the biases and loyalties?

3.1.3 Gather the Facts

- What are the ethically relevant facts?
- Whose account of the facts counts?
- Have all the relevant perspectives been obtained?
- What do the institution’s policies or guidelines say?
- What does the relevant law say?
- Facts in Biomedical Ethics Issues include:

- c. Patient or POA wishes
- d. Contextual features (Religion, culture, social etc...)

- Facts in Business/Organizational Ethics Issues include:

- a. Governance
- b. Partnerships
- c. Allocation/Rationing of resources
- d. Conscientious objection
- e. Employer/Employee relationship
- f. Conflict interest
- g. Alternative source of revenue
- h. Abuse of care providers
- i. Whistle blower

3.2 Deliberate

3.2.1 Consider Alternatives

- What are the alternative courses of actions?
- What are the likely consequences?

3.2.2 Examine Values

- What are the preferences of the person receiving care?
- Are other values relevant?
- Which of the values conflict?

3.2.3 Evaluate Alternatives

- Identify appropriate decision makers
- Rank all relevant values
- Justify ranking by appealing to “Maqasid As-Shariah (benefits, welfare or advantages behind revelation) Dharuriyat (necessities), Hajjiyat (requirements) Tahsiniyat (embellishment) *
- Evaluate the consequences in terms of principles
- What alternatives are excluded?

****Consult Religious Scholar for help, or refer to published fatwas available at ethics committee and Ministry of Religious affairs and endowment.***

3.3 Act

3.3.1 Articulate the Decision:

- Which alternative best reflects the ranking of values?
- Which alternative best balances more of the values?
- Have any other alternatives come to light?

3.3.2 Implement the Plan:

- How should the decision be communicated?
- Who needs to know it?
- How best to document the process?
- Who needs to act?

3.3.3 Concluding Review:

- What are the feelings of those involved?

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[Back](#)



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